

4.4.1	Rule 104(a) EPC – failure to arrange requested oral proceedings	1604
4.4.2	Rule 104(b) EPC – failure to decide on a party's request	1604
4.4.3	Successful petition under Rule 104(b) EPC	1605
4.5	Article 112a(2)(e) EPC – criminal act having an impact on a decision	1606
5	Removal from office of a board member	1606
5.1	General	1606
5.2	Composition	1606
5.3	Removal and judicial independence	1607
5.4	Independence from disciplinary proceedings	1607
5.5	Adversarial judicial proceedings	1607
5.6	Publication of the decision	1607
5.7	Reimbursement of costs	1608

1. Introduction

The Enlarged Board of Appeal is responsible for proceedings under Art. 112 EPC (referral of points of law by boards of appeal or the President of the EPO), proceedings under Art. 112a EPC (petitions for review against decisions of the boards of appeal) and proceedings under Art. 23(1), first sentence, EPC (removal from office of a member of the boards of appeal).

The provisions governing the procedure before the Enlarged Board are set out in the EPC, the Implementing Regulations and the RPEBA. The latter are binding upon the Enlarged Board, provided that they do not lead to a situation which would be incompatible with the spirit and purpose of the Convention (Art. 19 RPEBA).

The members of the Enlarged Board are mainly appointed from among the members of the boards of appeal, who continue to exercise their functions in the Legal Board or their respective technical boards ("internal members"). This double function is in itself not a reason for exclusion or objection under Art. 24 EPC (see R 12/09 of 3 December 2009, R 19/12 of 25 April 2014 and R 2/14 of 17 February 2015 for petition for review proceedings). Legally qualified members of national courts or quasi-judicial authorities may also be appointed as members of the Enlarged Board ("external members"), and may continue their judicial activities at national level (Art. 11(5) EPC).

2. Referral under Article 112 EPC

2.1. General

Art. 112 EPC defines the conditions in which legal uniformity within the European patent system may be established by means of a referral to the Enlarged Board of Appeal. It requires the boards (Art. 112(1)(a) EPC) or the President (Art. 112(1)(b) EPC) to deem the referral necessary, either in order to ensure uniform application of the law or if points of law of fundamental importance arise. For a referral by the President, a further admissibility

criterion is that two boards of appeal must have given different decisions on the question referred (G 3/08, OJ 2011, 10).

This chapter concerns Art. 112 EPC. The Enlarged Board's answers to referred questions of law are covered in the chapters corresponding to these questions.

2.2. Composition

In proceedings under Art. 112 EPC, the Enlarged Board consists of five legally and two technically qualified members; the chairman must be a legally qualified member (Art. 22(2) EPC). If a board of appeal refers a question to the Enlarged Board, at least four members of the Enlarged Board must not have taken part in the proceedings before the referring board (Art. 2(4) RPEBA).

2.3. Referral by a board of appeal

2.3.1 General

Under Art. 112(1)(a) EPC a board of appeal *shall* refer a question to the Enlarged Board of Appeal if it considers that a decision is required, in order to ensure uniform application of the law or because a "point of law of fundamental importance" arises. With the EPC 2000, the English wording was changed from "important" to "fundamental importance" in order to bring it into line with the French and German versions (see G 1/12, OJ 2014, A114).

Only questions on a specific point, not entire cases, may be referred to the Enlarged Board (e.g. T 184/91 of 25 October 1991, T 198/12). The Enlarged Board of Appeal is not a third instance within the EPO, but part of the second instance constituted by the boards of appeal (T 79/89, OJ 1992, 283). However, the Enlarged Board's answers to the referred points of law are binding on the referring board in respect of the appeal in question (Art. 112(3) EPC; see also J 8/07 of 1 July 2010).

The Enlarged Board of Appeal is not bound by the way the referring board formulated the question, and may redraft the referred question (see, for example, G 2/08, OJ 2010, 456, G 2/10, OJ 2012, 376, and G 1/13, OJ 2015, A42). The Enlarged Board does not consider referred questions narrowly, but in a way as to clarify the points of law which lie behind them (G 3/14, referring to G 2/88 and G 6/88, OJ 1990, 93 and 114).

The Enlarged Board of Appeal in petition for review proceedings under Art. 112a EPC is not a "Board of Appeal" within the meaning of Art. 112(1)(a) EPC that could initiate referral proceedings under that provision (R 7/08, R 1/11, R 7/12). The Disciplinary Board of Appeal has no power to refer questions to the Enlarged Board of Appeal either (D 5/82, D 7/82, D 9/91, D 30/05).

If a board is not empowered to decide a question, it is not empowered to refer that question to the Enlarged Board (T 1142/12).

Questions can be referred by a board either of its own motion or following a request from a party. If a board rejects a party's request for referral, it must give reasons in its final decision (Art. 112(1)(a) EPC). This was considered necessary to provide the parties with a certain guarantee, on the one hand, and to enable a certain degree of standardisation of the jurisprudence on the other (*travaux préparatoires*, BR/177/72, p. 31). Providing parties with a right of reference was, however, rejected (BR/168/72, p. 51).

The parties to the appeal proceedings are parties to the proceedings before the Enlarged Board (Art. 112(2) EPC). The Enlarged Board may invite the President of the EPO to comment on questions of general interest; the parties are entitled to submit their observations on the President's comments (Art. 9 RPEBA). Third parties may send written statements (*amicus curiae* briefs) to the Enlarged Board (Art. 10 RPEBA).

2.3.2 Discretion of the board

Several decisions state that referring a question under Art. 112(1)(a) EPC lies within the discretion of the boards (see e.g. T. 1016/10; T. 365/05; T. 1242/04, OJ 2007, 421). In T. 390/90 (OJ 1994, 808) the board stated that the boards have discretionary power to refer any question to the Enlarged Board, either if a request for such reference has been made by a party, or if an important point of law arises and, in both cases, if the board considers that a decision by the Enlarged Board is required to ensure uniform application of the law or to decide upon the point of law that had arisen.

In G. 3/98, (OJ 2001, 62) the Enlarged Board stated that while the view of the referring board is decisive for assessing whether a referral is required, such assessment should be made on objective criteria and should be plausible (see also G. 2/99, OJ 2001, 83). One of the criteria identified in T. 1242/04 was whether the question can be answered beyond all doubt by the board itself, in which case it does not need to be referred to the Enlarged Board (see also in this chapter V.B.2.3.7).

In T. 560/13 the board noted that under Art. 21 RPBA 2007, a referral of questions to the Enlarged Board of Appeal must be made in cases where the board considers it necessary to deviate from an interpretation of the EPC contained in an earlier opinion or decision of the Enlarged Board of Appeal. It further noted that according to Art. 20(1) RPBA 2007, if a board wishes to deviate from an earlier decision taken by a board of appeal, a referral is not compulsory, but the board must give the grounds for deviation unless such grounds are in accordance with an earlier opinion or decision of the Enlarged Board (see also T. 1676/08 and T. 1020/03, OJ 2007, 204). Moreover, in G. 1/98 the Enlarged Board stated that it was clearly desirable that whenever a board of appeal was aware that its decision involved a different interpretation of the law, on a point of substance and importance, from that applied in a decision of a previous board, that attention be drawn to this fact in its decision in a manner appropriate to the circumstances of the case, and that reasons be given for the different interpretation, so that the President of the EPO can take appropriate action (see also Art. 20(1) RPBA 2020).

In G. 1/14 the Enlarged Board of Appeal held that while it was primarily up to the board of appeal to explain, in its referral decision, that – and why – it believed it needed an Enlarged

Board ruling on the point arising in the case before it, the Enlarged Board must in any event examine whether the referral fulfilled the criteria of Art. 112(1)(a) EPC (including that a "decision is required") and was thus admissible.

2.3.3 Relevance of the referred question for the underlying case

The referred question must not have a merely theoretical significance for the original proceedings which would be the case if the referring board were to reach the same decision regardless of the answer to the referred question (G 3/98, OJ 2001, 62; G 2/99, OJ 2001, 83; see also T 547/08). It must be relevant for deciding the case in question (G 2/04, OJ 2005, 549; T 2136/16), or the Enlarged Board must be satisfied that "answers to the questions referred are necessary for each Board of Appeal to be able to dispose of their respective appeals on the correct legal basis" (G 1/05, OJ 2008, 271; G 1/06, OJ 2008, 307; see also G 2/06, OJ 2009, 306). In T 154/04 (OJ 2008, 46; see also J 16/90, OJ 1992, 260; and T 1044/07) the board held that the answer to the referred question must be "essential to reach a decision on the appeal in question".

In T 520/01 (see also T 787/06) the board referred to G 3/98, did not maintain the patent on grounds other than those to which the question related, and thus refused the party's referral request. In T 469/92, the board granted the appellant's main request, and therefore did not consider its auxiliary referral request.

In G 1/98 (OJ 2000, 111) one of the questions referred by the board concerned objections of which the appellant had not been made aware before, and the appellant expressed its intention to the Enlarged Board to make the required amendments. As a result, the Enlarged Board doubted the relevance of the referred question and deemed it inappropriate to offer guidance. In G 7/95 (OJ 1996, 626, see also G 9/92 of 22 June 1993) the Enlarged Board, having regard to the particular facts of the case before the referring board, deemed it not necessary to answer the referred question either.

In G 1/09 (OJ 2011, 336) a board referred a question on whether a *rejected* patent application was still pending under R. 25 EPC 1973 (R. 36 EPC; divisional applications) when no appeal had been filed but the time limit for filing an appeal had not yet expired. In his comments under Art. 9 RPEBA, the President of the EPO raised two additional questions, namely whether a *granted* application was still pending in such a situation, and whether the filing of an inadmissible appeal could maintain the pendency of the application beyond the expiry of the time limit for filing an appeal. The first additional question was – although not relevant for the decision in the underlying case – answered by the Enlarged Board in an obiter dictum, whereas the second was considered not to be covered by the referral decision.

In G 2/03 (OJ 2004, 448) the Enlarged Board stated that not all substantive requirements had been examined by the referring Board and that the referred question could, in the end, turn out to be irrelevant. Taking into account the usual order of examination according to which the referred question (on the allowability of disclaimers) was examined before substantive requirements such as inventive step, the Enlarged Board considered the referral nevertheless admissible. In G 2/99 (OJ 2001, 83), the Enlarged Board had doubts

whether the answer to the referred question would have an impact on the decision in the underlying proceedings, but deemed the referral nevertheless admissible, for reasons of procedural efficiency. In G 2/07 (OJ 2012, 130) the referrals were considered admissible "irrespective of whether an answer is actually required on all aspects which the referred questions might in theory be seen as embracing".

In G 1/14 the question referred to the Enlarged Board was whether an appeal is inadmissible or deemed not to have been filed if the notice of appeal is filed and the fee for appeal paid after expiry of the time limit (see chapter V.A.11.3. "Appeal deemed not to have been filed"). Until 1 April 2015 the wording of R. 126(1) EPC was limited to "Notification by post ... by registered letter with advice of delivery" (since amended to: "Notification by postal services ... by registered letter with advice of delivery or equivalent"). In the Enlarged Board's view notification of first-instance decisions by the postal service UPS was not covered by R. 126(1) EPC as formerly in force, so the referring board's finding that the appeal had not been lodged in time was inoperative. As this meant there was no need to refer the question, the Enlarged Board dismissed the referral as inadmissible.

2.3.4 Question of law

Only questions of law, not technical issues (e.g. T 287/11: the interpretation of technical features of a specific claim; T 181/82: whether the person skilled in the art can understand the technical content of a prior art document; see also T 1798/08) may be referred to the Enlarged Board. Similarly, in T 118/89 the board stressed that only questions of law, not questions of fact may be referred.

2.3.5 Pending proceedings

A board may only refer a point of law to the Enlarged Board of Appeal "during proceedings on a case" (Art. 112(1)(a) EPC). If the underlying appeal is withdrawn (see T 1040/04 and G 3/06, OJ 2007, 312), or the underlying application deemed to be withdrawn (G 2/14, OJ 2015, A13), the proceedings before the Enlarged Board are terminated.

The referral to the Enlarged Board must precede the decision of the board of appeal (T 2271/08). After a board has issued a decision in respect of certain issues, it has no power to refer a question to the Enlarged Board in connection with the issues already decided, even though other issues are still pending in proceedings on the same case (T 79/89, OJ 1992, 283).

For a referral to be admissible, the appeal has to be admissible (see T 1954/14). This principle does, however, not apply if the referral itself concerns the admissibility of the appeal. Without this exception, the boards would be denied the opportunity to refer questions on important points of law concerning the admissibility of an appeal. This would contradict Art. 112(1)(a) EPC where no restrictions of that kind appear (G 1/12, OJ 2014, A114; see also G 8/92, not published in the OJ; G 3/99, OJ 2002, 347; G 2/90, OJ 1992, 10 and G 2/04, OJ 2005, 549).